

22STCV41024 22STCV41024

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-09

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Case Number: 22STCV41024 Hearing Date: July 9, 2026 Dept: 310

Tentative

Ruling

Judge Kevin

C. Brazile

Department 310

Hearing Date: July

9, 2026

Case Name: Baca

III v. Knights of Columbus, et al.

Case No.: 24STCP00203

Matter: Petition

to Confirm Arbitration Award

Ruling: The Petition to Confirm is granted.

Defendant

to give notice.

The

Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative

ruling, please follow the instructions provided above.

Defendant Knights of Columbus seeks
to confirm an arbitration award against Plaintiff Ben Baca III.

Code

Civ. Proc. § 1285 provides in relevant part, “Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award.”

Code

Civ. Proc. § 1285.4 states, “A petition under this chapter shall: (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.”

Code Civ. Proc. § 1286 states, “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.”

“The

trial court has but four courses of conduct once a confirmation proceeding is initiated: 1) to confirm, 2) to correct and confirm, 3) to vacate, 4) to dismiss, where a respondent is not a party to the award or is not bound by the arbitration agreement.” (United Bhd. of Carpenters etc., Loc. 642 v. Demello (1972) 22 Cal.App.3d 838, 840.)

Plaintiff

argues that the award should be vacated because (a) the underlying arbitration agreement is unconscionable and (b) the arbitrator failed to disclose a conflict/bias.

Plaintiff's

argument as to unconscionability was already rejected on January 9, 2024.

Next,

Plaintiff cannot demonstrate that the arbitrator's past representation of an

unrelated religious entity rises to the level of evident partiality required to vacate an award under Code of Civil Procedure § 1286.2. The standard for bias is objective, and Mr. Baca has failed to establish any direct or substantive connection between the arbitrator's previous work and the parties or issues involved in this specific dispute. Consequently, his challenge amounts to an impermissible attempt to subject a final arbitration award to an after-the-fact attack based on generalized, unsubstantiated claims of bias.

The

Petition to Confirm Award is granted because (a) Defendant has attached the subject award, (b) the underlying arbitration agreement is on the Court's docket, and (c) the arbitrator has been identified as Rex S. Heinke.

Defendant to give notice.